Of course, none of these questions is before us in this case. All, however, may warrant exploration in future cases where they are presented, as may others besides. See, *e. g.*, *Melancon*, 972 F. 2d, at 577–579 (Parker, J., concurring specially) (discussing the potential application of the unconstitutional conditions doctrine); *United States* v. *Gordon*, 480 F. 3d 1205, 1207–1210 (CA10 2007) (applying contract principles to a plea bargain's terms); *United States* v. *Lajeunesse*, 85 F. 4th 679, 692 (CA2 2023) (same).

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Two hundred years ago, it was likely unimaginable that almost every federal criminal case would be resolved by plea bargain. Forty years ago, it may have been no easier to foresee that plea bargaining defendants would be pressed to waive their statutory right to appeal sentences yet to be imposed. Let alone that the federal government would argue these waivers prevent defendants from appealing even blatantly unlawful or unconstitutional sentences chosen by an orangutan. This Court is not responsible for all these developments, but it has encouraged some of them and stood silent while others took hold. Today, the Court finally begins to correct course, taking an important step toward reining in appeal waivers. It is not a solution to all of plea bargaining's excesses, and perhaps not even those associated with appeal waivers. But it is a start.

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JUSTICE KAVANAUGH, with whom JUSTICE ALITO and JUSTICE BARRETT join, concurring.

I join the Court's opinion in full. The Court's opinion sets a "high bar" for the miscarriage-of-justice exception to render an appeal waiver unenforceable. *Ante*, at 727. The

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(similar). Not only is JUSTICE THOMAS's account difficult to reconcile with our precedents. Under his view, it would seem the government could go so far as to insist that defendants prospectively waive the "procedural" right to a jury in any future trial against them.

Court describes the exception as applying in "extreme cases" to sentencing errors that are "egregious" and "obvious" and that "undermine public confidence in the judiciary." *Ante*, at 727–728. I appreciate JUSTICE GORSUCH's thoughtful concurrence. But I respectfully disagree with his understanding of the miscarriage-of-justice exception. As I read it, his concurring opinion would set a lower bar for the miscarriage-of-justice exception than the Court's opinion does. In my view, therefore, the concurrence may not be entirely consistent with the Court's opinion. In any event, the Court's opinion of course speaks for itself.

JUSTICE BARRETT, concurring.

JUSTICE THOMAS raises some thoughtful points about the Supreme Court's supervisory power. See *post*, at 761–763 (dissenting opinion). Today's opinion nowhere mentions this power, however, and I do not understand the Court to implicitly assert it.

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Like JUSTICE THOMAS, I am skeptical that the Supreme Court possesses an inherent, supervisory authority over inferior federal courts. See A. Barrett, The Supervisory Power of the Supreme Court, 106 Colum. L. Rev. 324 (2006). At the same time, I have distinguished exercises of such authority from the development of procedural common law. See A. Barrett, Procedural Common Law, 94 Va. L. Rev. 813, 883–884 (2008). The former concerns narrow, discretionary rules; the latter involves doctrines, like preclusion and abstention, which are "settled by tradition or emergent consensus." *Id.*, at 884.

In my view, today's decision rests on longstanding waiver principles and thus falls in the latter category. See *ante*, at 725 (majority opinion) (comparing appeal waivers to "waivers of other rights held by criminal defendants"). It is well established that a defendant may "intentional[ly] relinquis[h] or abando[n] . . . a known right." *Johnson* v. *Zerbst*, 304 U. S. 458, 464 (1938); see *Shutte* v. *Thompson*, 15 Wall. 151,